



CHAPTER xlvi

An Act to extend the time for the completion of works and the compulsory acquisition of lands under the Dartford Tunnel Acts 1930 and 1937 and for other purposes.
[30th July 1949.]

WHEREAS by the Dartford Tunnel Act 1930 (hereinafter referred to as "the Act of 1930") the county councils of the administrative counties of Essex and Kent (hereinafter referred to as "the Councils") were empowered to construct a tunnel (hereinafter referred to as "the tunnel") for vehicular and pedestrian traffic under the river Thames between the urban district (now the borough) of Dartford in the county of Kent and the urban district of Purfleet (now the urban district of Thurrock) in the county of Essex with roads forming approaches to the tunnels at each end thereof and to acquire compulsorily lands or easements for the purposes thereof:

And whereas under the Act of 1930 the time for the completion of the tunnel was limited to ten years from the passing of that Act and the powers for the compulsory purchase of lands were to cease on the thirty-first day of October one thousand nine hundred and thirty-three:

And whereas by the Dartford Tunnel Act 1937 (hereinafter referred to as "the Act of 1937") additional powers were conferred upon the Councils including powers for the construction of certain roads (hereinafter referred to as "the substituted roads") in the said borough of Dartford and the said urban district of Thurrock in substitution for parts of the approach roads authorised by the Act of 1930 and for the acquisition of lands or easements for the purposes of the substituted roads and for other purposes:

3 & 4 Geo. 6.
c. 16.

And whereas under the Act of 1937 the powers of compulsory acquisition of lands and easements under that Act were to cease on the first day of October one thousand nine hundred and forty and the time for the exercise of those powers has from time to time been extended by orders made under the Special Enactments (Extension of Time) Act 1940 and will expire on the first day of October one thousand nine hundred and forty-nine:

And whereas under the Act of 1937 the powers for the completion of the substituted roads were to cease on the first day of October one thousand nine hundred and forty-seven and the time limited by the Act of 1930 for the completion of the tunnel was extended until the same date:

And whereas the time limited for the completion of the substituted roads and of the tunnel was extended or further extended by an order made under the said Special Enactments (Extension of Time) Act 1940 and will expire on the first day of October one thousand nine hundred and fifty:

And whereas it is expedient that the time for the compulsory acquisition of lands or easements under the Act of 1937 and the time for completion of the tunnel and of the substituted roads should be further extended as by this Act provided:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

23 & 24 Geo.
5. c. 51.

And whereas in relation to the promotion of the Bill for this Act the Councils have observed the requirements of Part XIII of the Local Government Act 1933:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title and
citation.

1. This Act may be cited as the Dartford Tunnel (Extension of Time) Act 1949 and the Dartford Tunnel Acts 1930 and 1937 and this Act may be cited together as the Dartford Tunnel Acts 1930 to 1949.

Interpretation.

2. In this Act—

“ the Act of 1930 ” means the Dartford Tunnel Act 1930 ;

“ the Act of 1937 ” means the Dartford Tunnel Act 1937 ;

“ the Acts of 1930 and 1937 ” means the Dartford Tunnel Acts 1930 and 1937 ;

“ the substituted roads ” means the roads authorised by the Act of 1937 and described in section 6 (Power to construct works and take lands) of that Act ;

and unless the subject or context otherwise requires other words and expressions to which meanings are assigned by the Acts of 1930 and 1937 or by the Acts wholly or partly incorporated therewith have in relation to the relative subject matter the same respective meanings.

3. The time limited by the Act of 1930 for the completion of the tunnel and the works subsidiary or incidental thereto as extended by the Act of 1937 and by an order dated the fifteenth day of July one thousand nine hundred and forty-seven and made under the Special Enactments (Extension of Time) Act 1940 is hereby further extended until the first day of October one thousand nine hundred and sixty.

Extension of time for completion of tunnel and subsidiary and incidental works.

4. The time limited by the Act of 1937 for the completion of the substituted roads and the works subsidiary or incidental thereto as extended by the said order dated the fifteenth day of July one thousand nine hundred and forty-seven is hereby further extended until the first day of October one thousand nine hundred and sixty.

Extension of time for completion of substituted roads and subsidiary and incidental works.

5. The time limited by the Act of 1937 for the compulsory acquisition of lands and easements for the purposes of the substituted roads and for other purposes as extended by orders dated respectively the fifth day of November one thousand nine hundred and forty the twelfth day of November one thousand nine hundred and forty-three and the thirtieth day of October one thousand nine hundred and forty-six and made under the Special Enactments (Extension of Time) Act 1940 is hereby further extended until the first day of October one thousand nine hundred and sixty.

Extension of time for acquisition of lands under Act of 1937.

6. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be deemed for the purposes of the Acts of 1930 and 1937 to form part of the cost of the works authorised by those Acts and shall subject to the provisions of the Fifth Schedule to the Act of 1930 be borne by the Councils in equal shares and be paid out of their respective county funds or out of moneys to be borrowed under the Act of 1930 or the Act of 1937.

Costs of Act.